



राजस्थान RAJASTHAN 28 MAR 2023

AB 942156

This Non Judicial Stamp Paper From an
Integral part and parcel of

Deed of Hypothecation

Executed between

Wevois Labs Private Limited

And Yes Bank Limited on Dated 20/04/2023 At Jaipur

For WEVOIS LABS PVT. LTD.
Abhinav
Director

क्र.स. 1202 दिनांक 11.1 APR 2023

मुद्रांक का मूल्यांकन 500/-

क्रेता का नाम रवि चेलानी

पिता/पति का नाम _____

निवास स्थान जयपुर

मुद्रांक खरीदने संबंधित कार्य का मूल्यांकन लो 4

11.1 APR 2023

रवि चेलानी

ला. स्टाम्प विक्रेता

लाईसेंस नं. 29/09

2, न्यू कोलोनी, पाँच बत्ती, जयपुर

राजस्थान स्टाम्प अधिनियम 1998 के अन्तर्गत
स्टाम्प राशि पर प्रभारित अधिभार

1. आधारभूत आवसंरचना सुविधाओं हेतु (धारा 3-क)-10% प्रतिशत	रुपये 50/-
2. गाय और उसकी नस्ल के संरक्षण और संवर्धन हेतु (धारा 3-ख)/प्राकृतिक आपदाओं एवं मानव निर्मित आपदाओं के निवारण हेतु - 20% प्रतिशत	रुपये 100/-
कुल योग	रुपये 150/-

हस्ताक्षर स्टाम्प वैण्डर

DEED OF HYPOTHECATION

THIS DEED OF HYPOTHECATION ("Agreement") is made on the date mentioned in the Schedule (hereinafter referred to as the "Schedule") by :

The person(s) named in the Schedule hereto being borrowers and co-borrowers, hereinafter collectively referred to as "Borrower" which expression shall, unless it be repugnant to the context or meaning thereof, shall include:

(i) in the event that the Borrower is a Company within the meaning of the Companies Act, 1956/2013 or a Limited Liability Partnership, incorporated under the Limited Liability Partnership Act, 2008, its successors; (ii) in the event that the Borrower is a partnership firm for the purposes of the Indian Partnership Act, 1932, the partners for the time being and from time to time and their respective legal heirs, executors and administrators, legal representatives and successors; (iii) in the event that the Borrower is a sole proprietorship, the sole proprietor and his/ her legal heirs, administrators, executors and legal representatives; (iv) in the event that the Borrower is an individual, his/her legal heirs, administrators and executors; (v) in the event that the Borrower is a joint Hindu Undivided Family, the Karta and any or each of the adult members of the HUF and their survivor(s) and his / her / their respective heirs, executors, administrators; (vi) in the event that the Borrower is a Society, the members of the governing body of the Society and any new members elected, appointed or co-opted thereon; (vi) in the event that the Borrower is a Trust, the Trustee or Trustees for the time being thereof and their respective legal heirs, executors, administrators and successors.

IN FAVOUR OF

The bank(s) and financial institution(s), company, listed in Schedule I (hereinafter referred to as the "Bank(s)" or "Lender(s)", "Company", which expression shall, unless it be repugnant to the subject or context thereof, include its successors, transferees, novatees and assigns) of the **OTHER PART**.

(Each of the parties mentioned above, are hereinafter collectively referred to as the "Parties" and individually as a "Party".)

The person(s) named in the Schedule hereto being hypothecator which expression shall, unless it be repugnant to the context or meaning thereof, shall include:

(i) in the event that the hypothecator is a Company within the meaning of the Companies Act, 1956/2013 or a Limited Liability Partnership, incorporated under the Limited Liability Partnership Act, 2008, its successors; (ii) in the event that the hypothecator is a partnership firm for the purposes of the Indian Partnership Act, 1932, the partners for the time being and from time to time and their respective legal heirs, executors and administrators, legal representatives and successors; (iii) in the event that the hypothecator is a sole proprietorship, the sole proprietor and his/ her legal heirs, administrators, executors and legal representatives; (iv) in the event that the hypothecator is an individual, his/her legal heirs, administrators and executors; (v) in the event that the hypothecator is a joint Hindu Undivided Family, the Karta and any or each of the adult members of the HUF and their survivor(s) and his / her / their respective heirs, executors, administrators; (vi) in the event that the hypothecator is a Society, the members of the governing body of the Society and any new members elected, appointed or co-opted thereon; (vi) in the event that the hypothecator is a Trust, the Trustee or Trustees for the time being thereof and their respective legal heirs, executors, administrators and successors.

For WEWIS LABS PVT. LTD.
Abhinav

Page 1 of 8
Director

WHEREAS:-

- (A) The Borrower is engaged in the business of *inter-alia* as mentioned in the schedule
- (B) The Lender has sanctioned to the Borrower, credit facilities in terms of the Lender's Facility Letter Ref. No. as mentioned in schedule, for financing various credit facilities, to an extent as mentioned in schedule being in the nature of various credit Facilities.
- (C) The term Agreement shall include any modification, extension or, supplemental thereto. The above mentioned credit facility is hereinafter referred to as 'the Facility'.
- (D) The Borrower has, by accepting the terms and conditions as contained in the Agreement, agreed to avail the Facility from the Lender and to repay the same together with interest thereon at the agreed/stipulated rate with provisions for payment of additional interest, liquidated damages, commitment charges, payable and outstandings from time to time by the Borrower as set out in the Agreement.
- (E) In terms of the Agreement, the Borrower and the Lender have agreed that the principal sums under the Facility together with all interest, costs, expenses and other monies whatsoever stipulated therein, are to be secured in the form of a Exclusive hypothecation in favor of the Lender, on all the Hypothecated Assets, more particularly defined in the Schedule hereto.

NOW THIS DEED WITNESSETH AS FOLLOWS:

1. In consideration of the Lender granting/ continuing to grant the Facility to the Borrower under the Agreement, the Borrower hereby hypothecates by way of a first charge or as mentioned in the schedule in favour of the Lender, a brief description whereof is given in the schedule hereunder written which now or hereinafter from time to time during the continuance of this security shall be due to or accrue in favour of the Borrower, as the case may be, hereinafter called Hypothecated Assets as security for the repayment by the Borrower to the Lender of the amounts due and outstanding from the Borrower to the Lender in respect of the Facility as mentioned *ibid*, at any time or ultimately on the termination of the Facility, and for the payment of all the debts and liabilities mentioned in Clause 9 hereof. The expression "the amounts due and outstanding" in this and the subsequent clauses of this Deed shall be taken to include the principal moneys from time to time due in respect of the Facility and also all interest and overdue interest thereon calculated from day to day in accordance with the Lender's usual practice and the amounts of all charges and expenses which the Lender may have paid or incurred in any way in connection with the Hypothecated Assets or the recovery or disposal thereof.
2. Notwithstanding anything contained in the previous clause, the Borrower shall at all times during the continuance of this security keep and maintain such margin of security in favour of the Lender if any as may be notified by the Lender from time to time. The Borrower shall not operate or draw against the Facility so as to exceed the margin of security, if any as the Lender may from time to time fix. If at any time the margin is not maintained, then the Borrower shall forthwith (according to and as the Lender may require) either hypothecate in favour of the Lender, such further assets as approved by the Lender and of sufficient value to make up the deficiency or shall reduce the outstanding amounts of the Facility by cash payment, so as to maintain the required margin.
3. The Hypothecated Assets shall be held for the benefit of the Lender specially appropriated to this security and the Borrower will not, without the Lender's prior written consent, create any further charge, lien or encumbrance affecting the same or any part thereof nor do anything which would prejudice the security hereby

For WEVOR LABS PVT. LTD.
Abhinav
Director

created and the Borrower shall not part with the Hypothecated Assets other than in the ordinary course of business.

4. The Borrower shall, with the previous consent of the Lender, be at liberty from time to time to sell or dispose off in any manner otherwise than in the ordinary course of business, the Hypothecated Assets or any part thereof provided the value of such Hypothecated Assets realised, is utilised to repay the Facility.
5. The Borrower shall permit the Lender, their agents and servants from time to time and at all times, at risk and expense of the Borrower, to enter upon any premises wherein the Hypothecated Assets and/or the records of the Hypothecated Assets or any part thereof may for the time being be maintained and to view, inspect and evaluate the same and make records/ take copies thereof and render to the Lender and their servants all facilities as may be required for any of the purposes aforesaid.
6. The Borrower shall, if so required by the Lender, cause an indication or marking with the name of the Lender and a statement to the effect that the Hypothecated Assets stored, kept or otherwise recorded have been hypothecated in favour of the Lender, distinctly affixed/written/printed thereon to be shown at all times in a conspicuous manner upon on all or any such premises and/or records where the Hypothecated Assets are maintained and/or recorded, during the continuance of the security created hereby.
7. In addition, the Borrower shall make and furnish to the Lender, all statements and returns of the details of the Hypothecated Assets and a full description thereof and produce such evidence in support thereof, as the Lender may from time to time require.
8. Interest as applicable in terms of the Agreement, shall be calculated and charged on the Facility outstanding balance, until the Facility is fully liquidated, and shall be regularly paid by the Borrower.
9. On demand by the Lender in terms of the Agreement, the Borrower shall pay to the Lender, the Facility balances then due to the Lender together with all interest (including overdue interest, if any) at the rates mentioned therein and the amount of all further charges and expenses (if any) to the date of payment, provided nothing contained in this clause shall be deemed to prevent the Lender from demanding payment of the interest for the time being due at the above mentioned rate without at the same time demanding payment of the balance due to the Lender, exclusive of such interest.
10. In default of payment by the Borrower of any money secured in terms of these presents or in the event of the Borrower committing a breach of any of the terms and conditions of these presents or of the Agreement, or the occurrence of any circumstances in the opinion of the Lender, endangering this or any other security, the Lender and their officers and agents shall be entitled without notice to the Borrower but at the Borrower's risk and expense and if so required, as attorneys for and in the name of the Borrower or otherwise, to exercise the rights available to the Lender under Clause 16 of these presents.
11. If the net sum realised or to be realised pursuant to the exercise of such power in the clause 16 of these presents, be insufficient to cover the balance then due to the Lender, the Lender shall be at liberty to apply any other money or moneys in the hands of the Lender standing to the credit of or belonging to the Borrower in or towards payment of the balance for the time being due to the Lender and in the event of there not being any such money or moneys as aforesaid in the hands of the Lender or in the event of such money or moneys being still insufficient for the discharge in full of such balance, the Borrower promises and agrees forthwith on production to them of an account to be prepared and signed as in Clause 13 hereof to pay further the balance which may appear to be due by the Borrower thereon PROVIDED ALWAYS that nothing herein contained shall be deemed to negate, qualify or otherwise prejudicially affect the right of the Lender (which it is hereby expressly agreed the Lender shall have) to recover from the Borrower, the balance for the time being remaining due from the Borrower to the Lender, upon the Facility, notwithstanding that all or any of the said Hypothecated Assets may not have been realised.

For WEVOIS L&S PVT. LTD.
D. A. B. M. N. S.
Director

Page 3 of 8

12. In the event of there being a surplus available pursuant to Clause 11 of these Presents, after payment in full of the balance due to the Lender, it shall be lawful for the Lender to retain and apply the said surplus together with any other money or moneys belonging to the Borrower for the time being in the hands of the Lender in or under whatever account as far as the same shall extend against, in, or towards payment or liquidation of any and all other moneys which shall be or may become due from the Borrower, whether solely or jointly with any other person or persons, firm or company, to the Lender by way of loans, discounted bills, letters of credit, guarantees, charges or of any other debt or liability including bills, notes, credit and other obligations current though not then due or payable or other demands, legal or equitable, which the Lender may have against the Borrower, or which the law of set off or mutual credit would in any case admit and whether the Borrower shall become or be adjudicated bankrupt or insolvent or be in liquidation or otherwise and interest thereon from the date on which any and all advance or advances in respect thereof shall have been made at the rate or respective rates at which the same shall have been so advanced.
13. The Borrower agrees to accept, in the absence of any manifest error, as conclusive proof of the correctness of any sum claimed to be due from them to the Lender under this Deed, a statement of account made out from the books of the Lender and signed by the accountant or other duly authorised officer of the Lender without the production of any other voucher, document or paper.
14. This Deed is to operate as security for the balance from time to time due to the Lender and also for the ultimate balance to become due on the Facility and the Facility is not to be considered to be terminated for the purpose of this security and the security of the Hypothecated Assets is not to be considered exhausted by reason of the Facility being brought to credit at any time or from time to time or of its not being drawn upon to the full extent of the said aggregate sum as mentioned in the schedule if afterwards reactivated by a payment to credit.
15. The Borrower hereby declares that all the Hypothecated Assets shall be the absolute property of the Borrower, at the sole disposal of the Borrower hereof, free from any prior charge or encumbrance and that all future assets hereunder shall be likewise their unencumbered undisposed property and that the Borrower has/shall not done/do or knowingly suffered/suffer or been/be party or privy to anything whereby it is/shall be in any way prevented from hypothecating the Hypothecated Assets in the manner as contained herein and that the Borrower will do and execute at its costs all such acts and things for further and more particularly assuring the Hypothecated Assets or any part thereof to the Lender as shall be required by the Lender and for giving better effect to these Presents, the Borrower hereby irrevocably authorises and appoints the Lender and/or their officers as attorneys and in the name of the Borrower to act on behalf of the Borrower and to execute and do any act, assurance and things which the Borrower ought to execute and do under these Presents or generally to use the name of the Borrower in the exercise of the powers hereby conferred.
16. In the event of default on the part of the Borrower in observing any of the terms and conditions of the Agreement or of these presents, or if an event of default occurs as mentioned in the Agreement, or if the borrower receives any notice of winding up and a winding up petition is filed which is not dismissed within a period of two months from the date of service of such winding up petition or any provisional liquidator is appointed or any assets of the borrower or the borrower ceases to carry on business or passes a resolution to that effect or any of the assets of the borrower moveable or immoveable is attached or if the borrower is under voluntary or compulsory liquidation or on the occurrence of any circumstances in the opinion of the Lender, prejudicing or endangering this or any other security, the Lender shall, in addition to the powers conferred hereby or the Agreement, be entitled (at the Borrower's risk and expense) as Attorney(ies) for and in the name of the Borrower, (the Borrower hereby appointing the Lender, in its individual capacity to be its Attorney) to appoint Receivers or any other appropriate agents or agencies for the Hypothecated Assets forming part of the security created hereby, and give notice and demands to the Borrower and the parties liable in respect of those Hypothecated Assets and to demand, sue, recover and receive and give receipts and discharges for the same,

For WEVOIS LABS PVT. LTD.
Abhinav
Director

realise by private contract or otherwise, dispose off all or any part of the said Hypothecated Assets and enforce, compromise or settle by arbitration or deal in any manner with any of the said Hypothecated Assets or claims under this security. The Borrower undertakes to transfer and deliver to the Lender all relevant documents or papers and agrees to accept the Lender's accounts or receipts from realisation under this security and to make good to the Lender any shortfall or deficiency thereby shown.

17. The Borrower agrees to execute on demand by the Lender such further documents as may be required by the Lender in respect of the maintenance or realisation of the security created hereby.
18. The Borrower shall not without the prior written consent of the Lender, receive, compound or realise or commit any act with respect to the Hypothecated Assets whereby the recovery thereof is impeded, delayed or prevented.
19. Provided always that this Deed is not to prejudice the rights or remedies of the Lender against the Borrower irrespective and independent of this Deed in respect of any other advances made or to be made by the Lender to the Borrower.
20. Any change in the constitution of the Borrower or the Lender, during the validity of this Deed, shall not impair or discharge the liability of the Borrower hereunder.
21. The Borrower shall submit the proper declaration in respect of particulars of the Hypothecated Assets held by them as and when required and in the form and manner prescribed by the Lender and will hand over the declaration to the Lender to enable them to prepare their own declaration as regards the assets so hypothecated.
22. Any notice by way of request demand or otherwise hereunder may be given by the Lender to the Borrower personally or may be left at the then or last known place of business or residence in India of the Borrower or any of such individuals addressed to the Borrower or may be sent by post to the Borrower addressed as aforesaid and if sent by post it shall be deemed to have been given at the time when it would be delivered in due course of post and in proving such notice when given by post it shall be sufficient to prove that the envelope containing the notice was posted and a Certificate signed by the Lender's respective local manager or duly authorised officer that the envelope was so posted shall be conclusive. If by any reason any such notice cannot be given, the same if inserted once as an advertisement in a newspaper circulating in the district of the Lender's office shall be deemed to have been effectually given and received on the day on which such advertisement appears.
23. In the event of default by the Borrower under the Agreement, the Lender may take any steps to take possession or realise or enforce the security through the intervention of the Court or by appointing a Receiver or by sale or realisation of the assets charged hereby or otherwise howsoever and in whatever manner as it deems fit and for that purpose exercise all rights and powers vested in the Lender by law and/or under the Agreement and other documents executed between the Lender and the Borrower.
24. In the event the security is realised howsoever and in whatever manner, proceeds of such realisations, including monies received from insurance companies or otherwise in respect of the security, after deducting therefrom the costs, (between attorney/advocate and client) charges and expenses incidental to such realisation, shall in the first instance be appropriated towards or in satisfaction of all indebtedness of the Borrower due and outstanding under the Agreement, *pro-rata* in accordance with the total amount of such indebtedness due and outstanding principal and interest and all charges under the existing Facility or any of them and in respect of the Agreement as aforesaid and therefore the balance, if any, shall be available for and be appropriated to the outstanding indebtedness or liabilities of the Borrower on any account or in any manner to the Lender in accordance with the total amount of such other outstanding indebtedness or liabilities. In the event of the net proceeds of realisation being insufficient for repayment of whole of the respective amounts due to the Lender, the same shall be appropriated in liquidation of the indebtedness of the Borrower to the Lender as aforesaid in accordance with the total amount of such indebtedness and liabilities. Until such appropriation the monies realised by any

For WEBOIS LBS PVT. LTD.
Director
Page 5 of 8

one of the Lender or by any Receiver appointed, shall be held by such Receiver in trust for the Lender or by its/their agents, nominees, officer, in trust for the benefit of the Lender in accordance with its rights hereunder.

25. The powers conferred under these presents shall be in addition to the powers conferred on the Lender in the Agreement and if there be any inconsistency between the terms and conditions in the Agreement and these presents, effort shall be made to give maximum effect to the terms and conditions in these presents and the Agreement. However if the inconsistency still prevail, a decision on the interpretation shall be taken by the Lender which decision, the Borrower agree shall prevail upon it/them.
26. Notwithstanding anything contained to the contrary in the foregoing provisions, the rights and powers vested in the Lender under the provisions of Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act, 2002 or any statutory modification or re-enactment thereof (the Act) shall remain unaffected and the said provisions shall not prejudice the rights and powers of the Lenders specially the rights conferred upon the Lender under the Act to enforce the securities under the various provisions of the said Act as also to securities the debt and security given therefore to the Lender under these presents, it being clearly understood by and between parties to the end and intent that all the rights and powers granted to the Lender under the said Act shall remain intact and shall not be prejudiced or curtailed by any of the provisions contained herein and further the borrower agrees and consents to the same.

The Borrower(s)/ Co-borrowers(s) hereby expressly acknowledge, declare and confirm that the Borrower(s)/ Co-borrowers(s) have read, verified and understood all the terms and conditions as contained in page No 1 to 6 of this Deed of Hypothecation above written and hereby accept the said terms and conditions and irrevocably agree to abide by the same by affixing the signatures herein below.

The Common Seal of the company has, pursuant to the Resolution of its Board of Directors passed in that behalf, hereunto been affixed in the presence of authorized signatory who have signed these presents in token thereof.

or

Signed and delivered on behalf of Borrower Company by the authorized signatory who has been authorized pursuant to the resolutions passed by the Board of Directors.

D,
For WEVOIS LABS PVT. LTD.
Abhishek
Director

SCHEDULE

1. Agreement Date: 20/04/2023

2. Borrower(s) Details:

a Name: **Wevois Labs Private Limited**

b Address: **293, Heera Nagar- A, Jaipur, Rajasthan - 302021**

c Co- Borrower(s) Details:

3. Name and address of the Hypothecator:

Name: **Wevois Labs Private Limited**

Address: **293, Heera Nagar- A, Jaipur, Rajasthan - 302021**

4. Facility Letter Ref. No **YBL/SEB/WS/FL/2023-2024/0260** Date **13/04/2023**

5. Nature of the business: **Services**

6. Facility/DOH Amount: **Rs. 30,000,000/- (Rupees Thirty Million Only)**

FOR WEVOIS LABS PRIVATE LTD.
Director

7. Nature of the charge: **Exclusive**

8. Type of Assets: *(describe here the hypothecated assets i.e. exclusive charge on current Assets, movable fixed assets, goods, movable plants and machineries)* **Exclusive charge by way of hypothecation on all the Current Assets (Both Present and Future) of the company**

Details of the Bank: YES BANK Limited, a company incorporated and registered under the Companies Act, 1956 and a banking company within the meaning of section 5(c) of the Banking Regulation Act, 1949, and having its registered office at YES BANK LIMITED, YES BANK House, Off Western Express Highway, Santacruz East, Mumbai - 400055

PART A

Strike off the assets whichever is not applicable

Whole of the Current Assets of the Borrower's stocks of raw material, semi-finished and finished goods, stores and spares including relating to plant and machinery (consumable stores and spares), Bills receivables and book debts and all other receivables and moveables (both present and future) whether lying or stored in or about or shall hereinafter from time to time during of the security of these presents be brought into or upon or be stored or be in or about of the Borrower's factories, premises and godowns situate anywhere and as the same maybe or be held by any party to the order or disposition of the Borrower or in the course of transit or on high seas or on order or delivery, howsoever or wheresoever in the possession and/or control of the Borrower and either by way of substitution or addition..

And

Whole of the Moveable Fixed Assets of the Borrower's including Plant and Machinery of Wevois Labs Private Limited and (mention the specific assets) located at Anywhere in India and anywhere in India (both present and future) or shall hereinafter from time to time during of the security of these presents brought into to the order or disposition of the Borrower or in the course of transit or on high seas or on order or delivery, howsoever or wheresoever ion the possession of the Borrower and either by way of substitution or addition.

And

All the book debts and receivables (both present and future) of the borrower including outstanding monies receivable claims and bills which are now due and owing or which may at any time hereafter during the continuance of this security become due and owing to the borrower in the course of its business by any person, firm, company or body corporate or by the Government Department or office or any Municipal or Local or Public or Semi Government body or any body corporate.

For WEVOIS LABS PVT. LTD.
Director